

SENATE BILL No. 140

DIGEST OF INTRODUCED BILL

Citations Affected: IC 35-45-2.5.

Synopsis: Doxxing. Provides that a person who knowingly or intentionally posts personal information of a targeted person, or of a person closely connected to the targeted person, to communicate a threat to the targeted person in retaliation for a prior lawful act commits doxxing. Provides that doxxing is a: (1) Class A misdemeanor; (2) Level 6 felony if the posting of the personal information results in the targeted person, or a person closely connected to the targeted person, suffering a serious bodily injury; or (3) Level 5 felony if the posting of the personal information results in the targeted person, or a person closely connected to the targeted person, suffering a catastrophic injury or death. Provides that certain conduct is not prohibited by the statute. Provides that the statute may not be construed to prevent, prohibit, limit, or restrict the freedom of expression protected by the Constitution of the State of Indiana or the Constitution of the United States.

Effective: July 1, 2026.

**Becker, Freeman, Glick, Leising,
Goode, Charbonneau, Deery,
Walker G**

January 5, 2026, read first time and referred to Committee on Corrections and Criminal Law.



Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

SENATE BILL No. 140

A BILL FOR AN ACT to amend the Indiana Code concerning criminal law and procedure.

Be it enacted by the General Assembly of the State of Indiana:

1 SECTION 1. IC 35-45-2.5 IS ADDED TO THE INDIANA CODE
2 AS A **NEW** CHAPTER TO READ AS FOLLOWS [EFFECTIVE
3 JULY 1, 2026]:

4 **Chapter 2.5. Doxxing**

5 **Sec. 1. The definitions set forth in sections 2 through 7 of this**
6 **chapter apply throughout this chapter.**

7 **Sec. 2. "Person closely connected to the targeted person" refers**
8 **to any of the following:**

- 9 (1) The spouse of the targeted person.
10 (2) A child, including a stepchild, of the targeted person.
11 (3) A parent or stepparent of the targeted person.
12 (4) A sibling of the targeted person.
13 (5) A grandparent of the targeted person.
14 (6) A person living in the same household as the targeted
15 person.
16 (7) A person involved in a dating relationship with the
17 targeted person.



(8) A coworker of the targeted person.

Sec. 3. (a) Except as provided in subsection (b), "personal information" refers to information or a combination of information, regardless of whether the information is publicly available, that consists of an individual's name and one (1) or more of the following:

(1) The individual's Social Security number.

(2) The address of the individual's residence or any other real property owned by the individual.

(3) A legal name previously used by the individual.

(4) The individual's telephone number.

(5) The name or address of the individual's employer.

(6) The name or address of a location that the individual:

(A) has frequently visited in the past; and

(B) is likely to visit in the future.

(b) The term does not include the address of real property provided on a real estate or mapping platform if the address is not displayed or disclosed in connection with any information identifying the owner or occupant of the real property.

Sec. 4. "Post" means to deliver, disseminate, or transmit information, regardless of whether the information transmitted is an audio file, a video, an image, or in a text format, to more than one (1) person through a social media platform, electronic mail, or another form of electronic communication.

Sec. 5. "Social media platform" means a website or application that:

(1) is open to the public;

(2) allows users to create accounts;

(3) enables users to communicate or interact with other users;

(4) permits users to create or post content, messages, information, or images that are viewable by other users; and

(5) permits users to comment on or message other users regarding such content, messages, information, or images.

Sec. 6. "Targeted person" refers to an individual whom another person intends to threaten through the disclosure of personal information belonging to the individual or to a person closely connected to that individual.

Sec. 7. "Threat" has the meaning set forth in IC 35-45-2-1.

Sec. 8. Except as provided in section 9 of this chapter, a person who knowingly or intentionally posts personal information of a targeted person, or of a person closely connected to the targeted person, to communicate a threat to the targeted person in



retaliation for a prior lawful act commits doxxing, a Class A misdemeanor. However, the offense is a:

- (1) Level 6 felony if the posting of the personal information results in the targeted person, or a person closely connected to the targeted person, suffering a serious bodily injury; or
- (2) Level 5 felony if the posting of the personal information results in the targeted person, or a person closely connected to the targeted person, suffering a catastrophic injury or death.

Sec. 9. The following are not prohibited by this chapter:

- (1) Providing another person's personal information to:
 - (A) a local, state, or federal law enforcement agency;
 - (B) the department of child services; or
 - (C) a prosecuting attorney, a United States attorney, or the attorney general;
 in reporting activity that the person making the report reasonably and in good faith believes may be a crime under state or federal law.
- (2) Disseminating another person's personal information in publicizing or alleging that the other person has engaged in conduct that the person making the report reasonably and in good faith believes is unlawful.
- (3) Providing another person's personal information while engaging in lawful and constitutionally protected activity as it pertains to speech, assembly, and petition.

Sec. 10. This chapter may not be construed to prevent, prohibit, limit, or restrict the freedom of expression protected by the Constitution of the State of Indiana or the Constitution of the United States.

